

8.	24CV0811	CAPITAL ONE, N.A. VS. KELLEY R ROGERS
MOTION FOR JUDGMENT ON THE PLEADINGS		

On May 26, 2026, Plaintiff filed its Notice of Motion and Motion for Judgment on the Pleadings, Points and Authorities in Support Thereof; Declaration of Laura D'Anna in Support Thereof. A Proof of Service was filed on June 1, 2026. A Request for Judicial Notice and an accompanying Proof of Service were filed on May 26, 2026. No opposition has been filed.

JUDICIAL NOTICE

Plaintiff asks the Court to take judicial notice of the following: 1) Plaintiff's Request for Admissions propounded on Defendant and; 2) Court order deeming Plaintiff's Request for Admissions to Defendant admitted on February 26, 2026.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Plaintiff fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Plaintiff provided Defendant and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Plaintiff has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

JUDGMENT ON THE PLEADINGS

Background

This matter stems from Plaintiff's efforts to collect \$21,916.11 in credit card debt from Defendant. The Complaint asserting a cause of action for Common Counts was filed on April 18, 2024. Defendant filed an Answer on June 5, 2024. Defendant generally denied all allegations of the Complaint and raised the following affirmative defenses: 1) Failure to State a Cause of Action; 2) Unclean Hands; 3) Failure to Mitigate Damages; 4) Failure to Join a Necessary Party; 5)

Setoff; 6) Failure to Perform Conditions or Conditions Precedent; 7) Usury; 8) Justification; 9) Unconscionability and Waiver; 10) Implied and Equitable Release; 11) Good Faith; 12; Lack of Privity; 13) No Right to Attorney's Fees; and 14) Complete Performance.

Legal Principles

A plaintiff may move for judgment on the pleadings if the complaint states facts sufficient to constitute a cause of action against that defendant and the answer fails to state facts sufficient to constitute a defense to the complaint. Code Civ. Pro. § 438 (c)(1)(A). The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.

"A plaintiff's motion for judgment on the pleadings is analogous to a plaintiff's demurrer to an answer and is evaluated by the same standards. (See *Hardy v. Admiral Oil Co.* (1961) 56 Cal.2d 836, 840-842, 16 Cal.Rptr. 894, 366 P.2d 310; 4 Witkin, Cal. Procedure (1971) Proceedings Without Trial, § 165, pp. 2819- 2820.) The motion should be denied if the defendant's pleadings raise a material issue or set up an affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the defendant's allegations as being true. (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 813, 161 P.2d 449.)" *Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331. However, where the defendant's pleadings show no defense to the action, then judgment on the pleadings in favor of the plaintiff is proper. See *Knoff v. City etc. of San Francisco* (1969) 1 Cal.App.3d 184, 200.

Courts may consider judicially noticeable matters in the motion as well. *Kapsimallis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672; *People ex rel. Harris v. Pac Anchor Transp., Inc.* (2014) 59 Cal.4th 772, 777. "The court will take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff. (*Tyree v. Epstein*, 99 Cal.App.2d 361, 221 P.2d 1002.) [Footnote omitted.]" (emphasis added.) *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605. Therefore, only the opposing defendants' discovery responses may be considered in ruling on a motion for judgment on the pleadings on those defendants' answer and affirmative defenses.

Code of Civil Procedure § 439(a) provides a meet and confer requirement in which the moving party must meet in confer in person, by telephone, or by video conference for the purpose of determining whether an agreement can be reached. A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the

motion for judgment on the pleadings. The Declaration of Laura D'Anna provides that despite several meet and confer attempts made, no response has been received. In fact, no response has been received from any attempts to meet and confer since June 21, 2024.

A motion for judgment on the pleadings may be granted with or without leave to amend. Cal. Civ. Pro. § 438(h)(1). Generally speaking, leave to amend is to be liberally granted. *Mendoza v. Continental Sales Co.* (2006) 140 Cal. App. 4th 1395 ("When there is a reasonable possibility that a defect in pleading can be cured by amendment, the trial court considering the motion for judgment on the pleadings abuses its discretion by not granting leave to amend..."). However, where the defective pleading is not reasonably susceptible to cure, it is proper for the court to decline leave to amend. *Id.* When leave to amend is not granted, "...then judgment shall be entered forthwith in accordance with the motion granting judgment to the moving party." Cal. Civ. Pro. § 438(h)(3).

Discussion

The Complaint asserts a cause of action for Common Counts and alleges that Defendant became indebted to Plaintiff within the last four years because an account was stated in writing between Plaintiff and Defendant in which it was agreed that Defendant was indebted to Plaintiff. Plaintiff asserts Defendant has been unjustly enriched by virtue of Defendant receiving monetary or other benefit, by Defendant knowingly requesting the funds at issue and/or accepting the benefits bestowed. It is inequitable for Defendant to retain said benefits without repaying Plaintiff the value thereof.

On June 18, 2024, Defendant was served Request for Admissions (Set One). Defendant failed to respond. Plaintiff requested and an order was entered deeming Plaintiff's Request for Admissions to Defendant as Admitted.

The Request for Admissions deemed admitted are as follows:

1. YOU (as used herein, "YOU" shall refer to the above-named responding party Defendant) applied for a credit card charge account with Plaintiff.
2. YOU received a Customer Agreement when YOU received the credit card with account number :XXXXXXXXXXXX:6713
3. The Agreement provided that by using the credit card, YOU agree to be bound by the terms therein.
4. YOU received a credit card with account number :XXXXXXXXXXXX:6713 from Plaintiff.
5. YOU agreed to pay Plaintiff for charges made on the charge account number ending in XXXXXXXXXXXX:6713.
6. YOU used the credit card to purchase goods, services, or to obtain cash advances.
7. YOU received regular monthly statements showing the charges made, payments received, and the total balance due, including any late fees and finance charges.

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8. YOU did not send written notice of any dispute to Plaintiff within sixty (60) days of receiving the statement bearing an alleged disputed charge(s).
9. All payments YOU have made have been applied to this account by Plaintiff.
10. YOU did not cancel credit card account number :XXXXXXXXXXXX:6713.
11. YOU did not report credit card account number XXXXX:XXXXXXXX6713 lost or stolen.
12. The principal amount of \$21,916.11 due set forth in the Complaint filed in this matter is correct.
13. Every statement or allegation contained in Plaintiff's Complaint is true and correct.

Such admissions conclusively establish the elements needed to prove the cause of action asserted in the Complaint. The Court does not find there is a reasonable possibility that a defect in Defendant's pleading can be cured by amendment. Plaintiff's Motion for Judgment on the Pleadings is granted without leave to amend. The Court will enter judgment in favor of Plaintiff against Defendant in the sum of \$21,916.11 principal, \$666.55 costs, and \$5,136.47 credits, for a total Judgment of \$17,446.19.

TENTATIVE RULING #8:

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS IS GRANTED WITHOUT LEAVE TO AMEND. THE COURT WILL ENTER JUDGMENT IN FAVOR OF PLAINTIFF AGAINST DEFENDANT IN THE SUM OF \$21,916.11 PRINCIPAL, \$666.55 COSTS, AND \$5,136.47 CREDITS, FOR A TOTAL JUDGMENT OF \$17,446.19.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.